

Court No. - 36

Case :- WRIT - C No. - 15384 of 2011

Petitioner :- Smt. Seeta Pal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Deepak K. Jaiswal, Kailash Choudhary

Respondent Counsel :- Anubhav Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

It is submitted by Shri Deepak Kumar Jaiswal, learned counsel for the petitioner that as against the provisional assessment made on account of the alleged change of user of Electricity by the petitioner, the petitioner filed Objections dated 26.4.2008 (Annexure-7 to the Writ Petition).

As without deciding the said Objections, the recovery proceedings were initiated against the petitioner, the petitioner filed a Writ Petition before this Court being *Civil Misc. Writ Petition No. 62369 of 2010*, which was disposed of by this Court by the Order dated 25.10.2010.

It is submitted that as per the directions given in the said Order dated 25.10.2010 passed by this Court, the respondent no. 2 was required to decide the Objections of the petitioner in accordance with law.

It is submitted that by the impugned Order dated 15.2.2011, the Objections of the petitioner against the provisional assessment have been decided but the said Order has not dealt with various points raised by the petitioner in the Objections dated 26.4.2008. The said Order, the submission proceeds, is not in accordance with the requirements of Clause 6.8 (b) and (c) of the U.P. Electricity Supply Code, 2005.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 and 2 has been accepted by Shri Anubhav Shukla.

Shri Anubhav Shukla, learned counsel for the respondent nos. 1 and 2 prays for and is granted four weeks' time for filing Counter Affidavit.

The petitioner will file Rejoinder Affidavit by the next date fixed in the matter.

List this case on 25.4.2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is

provided that recovery proceedings against the petitioner pursuant to the impugned Order dated 15.2.2011 will remain stayed till the next date fixed in this case provided within two weeks from today, the petitioner deposits an amount of Rs. 30,000/- with the respondent no.2.

Order Date :- 14.3.2011

Ajeet

Court No. - 36

Case :- WRIT - C No. - 15384 of 2011

Petitioner :- Smt. Seeta Pal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Deepak K. Jaiswal, Kailash Choudhary

Respondent Counsel :- Anubhav Shukla, S.C.

Hon'ble Satya Poot Mehrotra, J.

Hon'ble S.C. Agarwal, J.

Case is called out. Sri Deepak Kumar Jaiswal, learned counsel for the petitioner is present.

List this case on 16th May, 2011.

Interim order already granted will continue to remain operative till the next date fixed in the matter.

Order Date :- 25.4.2011

v.k.updh.

Court No. - 35

Case :- WRIT - C No. - 15384 of 2011

Petitioner :- Smt. Seeta Pal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Deepak K. Jaiswal, Kailash Choudhary

Respondent Counsel :- Anubhav Shukla, S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble Sudhir Agarwal, J.

List on 30.5.2011.

Interim order already granted shall continue till then.

Order Date :- 16.5.2011

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Court No. - 36

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Petitioner :- Smt. Seeta Pal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Deepak K. Jaiswal, Kailash Choudhary

Respondent Counsel :- Anubhav Shukla, S.C.

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Ashok Srivastava, J.

Case called out.

Sri D.K. Jaiswal, learned counsel for the petitioner is present.

List this case before the appropriate Bench on 14.7.2011.

Interim order, already granted, will continue to remain operative till the next date fixed in the matter.

Order Date :- 30.5.2011

Sandeep

Court No. - 37

Case :- WRIT - C No. - 15384 of 2011

Petitioner :- Smt. Seeta Pal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Deepak K. Jaiswal, Kailash Choudhary

Respondent Counsel :- Anubhav Shukla, S.C.

Hon'ble R.K. Agrawal, J.

Hon'ble Sunil Hali, J.

As prayed three weeks and no more time is granted for filing counter affidavit. List thereafter.

The interim order is extended till the next date of listing.

Order Date :- 4.8.2011

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Court No. - 10

Case :- WRIT - C No. - 15384 of 2011

Petitioner :- Smt. Seeta Pal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Deepak K. Jaiswal, Kailash Choudhary

Counsel for Respondent :- Anubhav Shukla, S.C.

Hon'ble Arun Tandon, J.

Hon'ble Harsh Kumar, J.

This writ petition has been filed challenging the demand notice issued by the Electricity Department in respect of the bills issued.

From the record, we find that the petitioner was involved in the theft of the electricity. Proceedings under section 135 of the Electricity Act, 2003 were initiated. She also deposited a sum of Rs.40,000/- by cheque for compounding of the offence, but the cheque was dishonoured.

Accordingly, the petitioner was called upon to deposit money in cash as well as the assessment amount.

We hardly see any reason to interfere in the writ petition. If the petitioner challenges the assessment order, she may take recourse to the provisions of the Electricity Act, 2003 by way of an appeal under section 127 of the Act.

Accordingly the writ petition is dismissed.

Order Date :- 18.1.2016

N.A.

Court No. - 10

Case :- WRIT - C No. - 15384 of 2011

Petitioner :- Smt. Seeta Pal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Deepak K. Jaiswal, Kailash Choudhary

Counsel for Respondent :- Anubhav Shukla, S.C.

Hon'ble Arun Tandon, J.

Hon'ble Harsh Kumar, J.

Heard learned counsel for the parties.

Under the order impugned dated 15.2.2011, the executive engineer has informed the petitioner that on the basis of surprise checking, it was found that the domestic connection provided to the petitioner was being mis-utilized for commercial purposes. It was an offence under section 135 of the Electricity Act 2003.

The petitioner furnished a cheque of Rs. 40,000/- towards the compounding fee qua the said offence but on presentation of the cheque for encashment was dishonoured. It has further been held that upon fresh assessment after dishonour of the cheque, the petitioner is liable to pay a sum of Rs. 1,15,194/- for which a bill was forwarded to him, against the consumption of the electricity. However, since the petitioner subsequently deposited the compounding fee of Rs. 40,000/- in cash on 08.12.2010 the assessment has been reduced to Rs. 59,355/- qua which bill was forwarded to the petitioner for payment. Petitioner challenges the said demand.

If the petitioner is not satisfied with the assessment so made, he has the statutory remedy under section 127 of the Electricity Act 2003, at the first instance.

Writ is not the proper remedy.

The writ petition is dismissed with liberty to file an appeal.

Interim order, if any, stands discharged.

Order Date :- 16.3.2016

Bhanu/vs

Order on Restoration Application No.54077 of 2016

Hon'ble Arun Tandon,J.

Hon'ble Harsh Kumar,J.

Cause shown for the absence by the counsel on 18.1.2016 is to the satisfaction of this Court.

Restoration application is allowed.

Order dated 18.01.2016 is recalled.

The writ petition is restored to its original number.

Order Date :- 16.3.2016

Bhanu/vs